CHAPTER 1

Background to the Law in SA

A. WHAT IS THE LAW?

1. Defining the law

- evident in all aspects of life
- function of laws is to make society a better, safer place that functions smoothly
- definition: the law is a set of rules made by the State to order the way in which people in a society behave
- the law tells us two things:
  a) what your duties/obligations are; &
  b) what your rights are
- 'legal' means it's:
  a) related to the law, eg: 'legal' terms
  b) allowed by the law, eg: it's 'legal' to sell beer to people over 18 years of age

2. Important terms

- legal subject = anyone to whom the law applies
- legal principle = generally accepted standard of conduct or behaviour that has the backing of the law to make it 'legally binding'
- legally binding = something that must be obeyed in order to avoid being held responsible in a court of law
- enforcement = State gives force or power to the law by holding people responsible when they break the law in order to make sure that people obey the laws

3. Types of laws

- two types:
  a) legal rules
  b) moral/ethical rules

a) Legal rules

- rules that everyone in society has to obey
- the action of breaking legal rules has consequences

b) Moral/ethical rules

- personal standards of behaviour based on people's belief systems/religion
- not enforced by the State
- sometimes moral rules overlap with legal rules, eg: murder
- laws can be immoral, eg: Apartheid

4. Role of the State

- makes laws and enforces them
- legislature = group of people elected by the people of a country to make the legislation/laws that govern the country or to change outdated legislation (Parliament)
- legislation = laws passed by Parliament
- Acts/statutes = pieces of legislation
- organs of state enforce the laws, eg: police services, judiciary

B. HISTORY OF SOUTH AFRICAN LAW

1. Indigenous law

- pre-1652 indigenous people developed their own law
- is known today as customary law
- is not based on written rules but on oral cultural tradition
- eg: payment of lobola

2. Roman – Dutch law

- Law of Holland was based on Roman law
- was gradually adapted by the Dutch to become Roman-Dutch law
- was brought to the Cape by settlers from 1652
- became the official law of the Cape until early 1800

3. English law

- British took over the Cape from early 1800
- brought English law with them

4. Common law

- South African courts adapted the mixture of Roman-Dutch law and English law to meet local needs and situations
- became known as the common law
- reflects the changes in the political control of South Africa
- eg: murder, rape, robbery, theft = common law crimes

C. SOURCES OF SOUTH AFRICAN LAW

- codified legal system = all laws can be found in one place
- South African legal system is uncodified = law is stored in many different places
- sources = places where you can find particular laws
- list of sources:
    1. **Legislation**
    2. **The Constitution of the Republic of South Africa, 1996**
    3. **Common law**
    4. **Customary law**
    5. **Judicial precedent**
    6. **Foreign law**
    7. **International law**
    8. **Trade practices and customs**
    9. **Academic textbooks and journals**

- There are two main types of sources:
  a) Primary sources of law, which refer to original sources of law:
     - **Legislation**
     - **The Constitution of the Republic of South Africa, 1996**
     - **Common law**
     - **Customary law**
     - **Judicial precedent**
     - **Foreign law**
     - **International law**
     - **Trade practices and customs**

  b) Secondary sources, which refer to that which is written about primary sources
     - **Academic textbooks and journals**

1. Legislation

a) *What is legislation?*

- 1st and most important source
- legislation = laws passed by parliament/legislature = group of people elected by the people of a country to make the legislation/laws that govern the country or to change outdated legislation Acts/statutes = pieces of legislation = governs the whole country
- overrides all other sources of law, **except the Constitution**
- flexible and easy to change

b) *Levels of legislation*

- provincial and lower levels of government can also pass laws known as provincial statutes, by-laws and regulations
- laws created by higher levels have more authority than laws created by lower levels
- Parliament = sovereign/primary legislation; lower legislatures = subordinate legislation
- legislative power can be delegated

c) South Africa's highest legislation

- Constitution of the Republic of South Africa Act 108 of 1996
- supreme/highest law in South Africa
- all other law is subordinate to the Constitution
- most important part of the Constitution = Bill of Rights
- lists specific rights that everyone in South Africa has
- laws can limit rights (section 36)

d) Finding legislation

- statute books and websites

2. Common law

a) *What is the common law?*

- mixture of Roman-Dutch law, English law and South African court decisions
- develops in 3 ways:
  i) courts interpret legislation and address new issues
  ii) legal systems of other countries
  iii) pass legislation

b) *Finding the common law*

- not as easy to look up as legislation
- academic textbooks and past court decisions

3. Customary law

a) *What is customary law?*

- law of indigenous people of South Africa pre-1652
- not based on written rules but on oral tradition
- carried down from generation to generation, eg: payment of lobola
- is recognised and protected by the Constitution provided it doesn't conflict with the Bill of Rights
- For e.g Male primogeniture rule
- Bhe v Magistrate Khayelitsha – pg 8

b) *Finding customary law*

- applied by traditional courts (chiefs and headmen's courts)
- based on oral tradition so is difficult to look up
- textbooks and past court decisions

4. Judicial precedent

a) What is judicial precedent?

- courts decide similar cases in a similar way
- *stare decisis* = the decision stands

b) Courts = law-interpreters + law-makers

- higher court interprets the law and decides a case a certain way = sets a precedent
- lower courts are bound by decisions of higher courts
- if no previous precedent or foreign law, judge makes his/her own decision = judge-made law

5. Foreign law

- uses legal decisions made in other countries for problems not yet decided in South Africa and for which our law has no solutions
- sections of our Constitution are borrowed from other countries
- our law reflects the global village
- Section 39 of the Constitution indicates that our courts ***may*** consider foreign law in their decision-making

6. International law

- Comes from agreements or treaties between countries/ international organisations for e.g the UN.
- Section 39 of the Constitution states that the courts ***must*** consider international law in their decision-making

7. Trade practices and customs

- any method or dealings which has been done in a clear, particular way for a sufficient period of time to become law
- requirements for a practice to become law (*Van Breda and others v Jacobs and Others*):

  Practice must be:
  - Certain
  - Uniformly observed for a long period of time
  - Reasonable for it to be recognised as law

- For example fishing practices of indigenous communities.
- See *Gonqose and others v State and another* pg 10

6. Academic textbooks and journals

- writings of well-respected academics
- reflects current law as received from other sources of law
- if judges can't find answers in legislation, past decisions or foreign law, can make use of academic writings

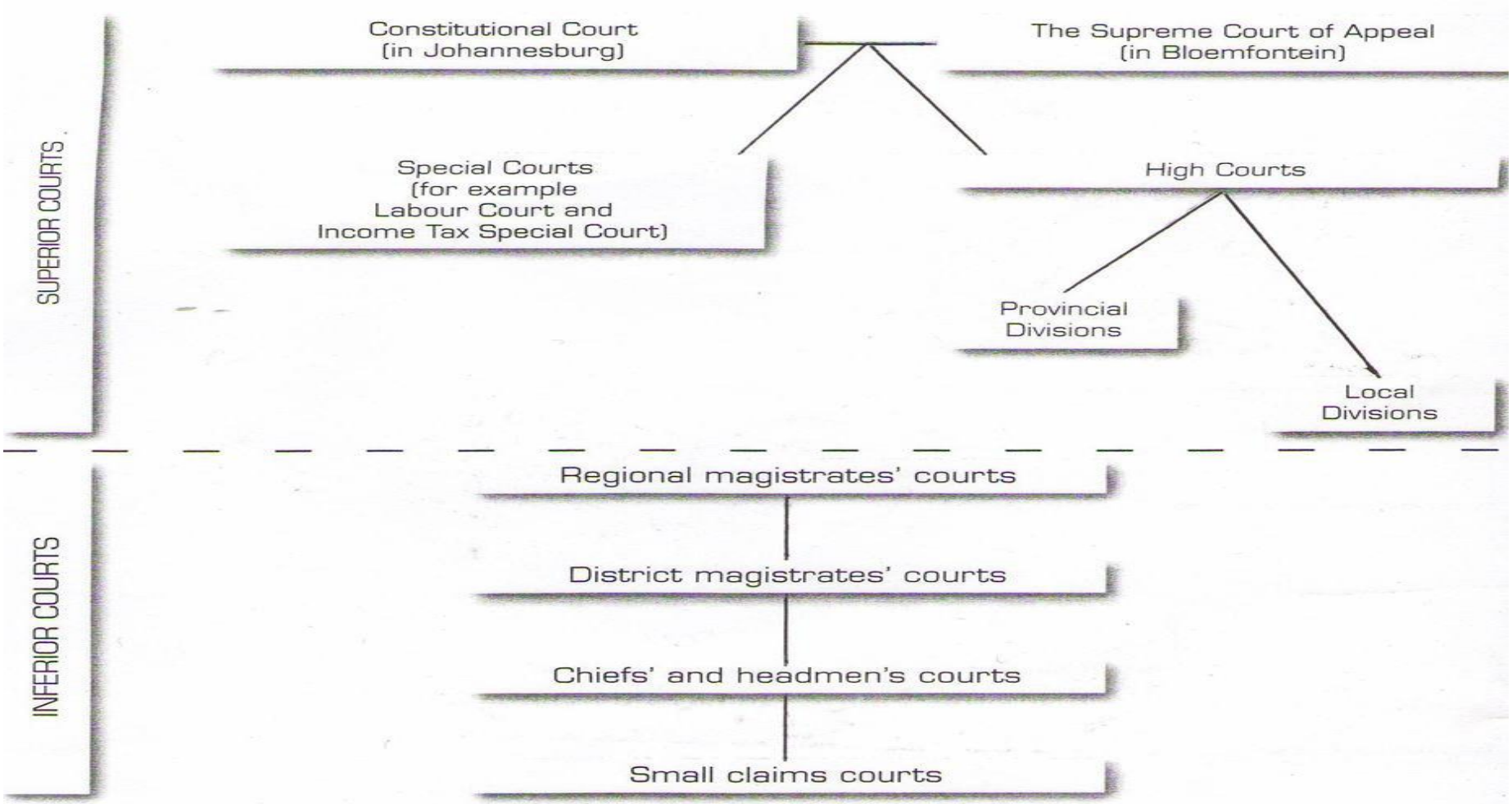
D. SOUTH AFRICAN COURT HIERARCHY

- different courts in South Africa have different levels or areas of power
- **jurisdiction** = range of matters a particular court is allowed to hear
- jurisdiction is limited to:
    a) types of cases
    b) geographical area
    c) decisions or orders
- court's jurisdiction determines its place in the hierarchy

1. Important terms

- **crime** = an illegal act that is punishable by law
- **criminal case** = between the State and the accused (vertical, unequal relationship)
- **civil case** = between two individuals (horizontal, equal relationship)
- **damages** = payment to compensate someone who's suffered loss as a result of the wrongful act of another person
- in SA an accused person is presumed innocent until proven guilty in court
- he who alleges must prove
- responsibility that the plaintiff has to prove his case = **burden of proof**
- is different for criminal and civil cases
- criminal = beyond reasonable doubt
- civil = balance of probabilities

2. Court structure



3. Inferior courts

- handle less serious cases compared to the superior courts
- have a smaller geographical jurisdiction than superior courts
- cannot create judicial precedent
- bound by the decisions of superior courts
- includes:
  a) small claims courts
  b) chiefs' and headmen's courts
  c) magistrates' courts

a) Small claims courts

- can only hear civil cases of claims up to R15 000
- uses an informal procedure (no lawyers)
- cases heard by a 'commissioner'
- advantages:
  i) justice is more accessible
  ii) it's less expensive
  iii) it's generally quicker
- Only **natural persons** can initiate proceedings in a small claims court.
- **Juristic persons** can be sued but cannot sue in a small claims court.

b) Magistrates' courts

- decisions don't create precedent
- bound by decisions of higher courts
- cases heard by a 'magistrate'
- jurisdiction limited in terms of:
  i) geographical area (district or region)
  ii) type of case
  iii) maximum sentence
- 2 levels:
  i) district magistrates' courts
  ii) regional magistrates' courts

i) District magistrates' courts

- only have jurisdiction over local areas = magisterial districts
- hears criminal and civil matters
- criminal = can't hear murder, rape or treason; maximum prison sentence = 3 years; maximum fine = R120 000
- civil = can't hear divorce, adoption, insanity, validity/interpretation of a will cases; maximum amount claimed = R200 000

ii) Regional magistrates' courts

- only have jurisdiction over their region
- Criminal = can hear all except treason cases; maximum prison sentence = life imprisonment; maximum fine = R600 000
- Civil = Maximum amount claimed = between R200 000 and R400 000

4. Superior courts

- most important in the hierarchy
- are only courts that can create judicial precedent
- bound by their own decisions unless overruled by higher court
- includes:
  a) High Courts
  b) Supreme Court of Appeal
  c) Constitutional Court
  d) Special courts (not in scope)

a) High Courts

- cases heard by ‘judges’, headed by a ‘Judge President’
- only has jurisdiction over its province
- can hear any criminal matter
- can give life imprisonment sentence
- no limits to amount claimed in civil matters (above R400 000)
- hears review and appeals from inferior courts
- bound by its own decisions unless overruled by higher court
- has limited constitutional jurisdiction
- includes:
  i) Provincial divisions
  ii) Local divisions (can’t hear appeals)

b) The Supreme Court of Appeal

- highest court in SA not dealing with constitutional matters
- cases heard by ‘judges of appeal’ headed by a ‘President of the Court’
- can hear any criminal and civil case
- limited constitutional jurisdiction
- geographical jurisdiction = whole country
- only a court of appeal, never a court of 1st instance
- interprets legislation & develops the common law
- bound by its own decisions, binds all lower courts

c) The Constitutional Court

- purpose = uphold Constitution as supreme law
- 10 judges headed by the 'Chief Justice'
- CC is the highest court in all matters, not only constitutional matters
- CC is the highest court in the country to interpret, protect and enforce provisions of the Constitution and had its jurisdiction extended to also cover non-constitutional issues, which it does on occasion (extended by the Constitution Seventeenth Amendment Act of 2012)
- Non-constitutional matters only considered if the CC decides that the case raises an arguable point of law of **general public importance** which it ought to consider
- See *S v Boesak* pg 15

- In *Paulsen and another v Slip Knot Investments,* the CC held that for it to have jurisdiction in a non-constitutional case, the following must be considered:

  i) point must be one of law and arguable;
  ii) whether it is arguable depends on the particulars of each case;
  iii) point of law must be of general public importance; and
  iv) point of law refers to the standard of the interests of justice

- The CC has the exclusive jurisdiction over the following matters:

  i) infringement of constitutional rights, eg: *S v Makwanyane*
  ii) invalidating legislation conflicting with BOR
  iii) ordering Parliament to correct legislation conflicting with the BOR
  iv) ordering organs of state to stop/correct actions conflicting with BOR

- decisions of the CC are binding on all other courts